

**HERITAGE IMPACT ASSESSMENT FOR THE
PROPOSED ABANTU ENVIRONMENTAL SERVICES CONFERENCE
CENTRE, MBASHE LOCAL MUNICIPALITY, EASTERN
CAPE PROVINCE**

PHASE 1 ARCHAEOLOGICAL IMPACT ASSESSMENT

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EXECUTIVE SUMMARY

Abantu Environmental Services proposes the development of a conference centre within the Mbashe Local Municipality, in the Amathole District Municipality, in the Eastern Cape Province. In accordance with the requirements of the National Heritage Resources Act (Act No. 25 of 1999) and the Eastern Cape Provincial Heritage Resources Authority (ECPHRA), a Phase 1 Archaeological Impact Assessment (AIA) was undertaken to evaluate the potential impact of the proposed development on heritage resources.

The assessment was conducted as a desktop study and involved a review of available geological maps, published scientific literature, previous heritage studies, and satellite imagery. The objective of the study was to determine the archaeological sensitivity of the proposed development area, evaluate the likelihood of archaeological occurrence, and assess any potential impacts associated with the proposed development activities.

The proposed development is located in an area with a long history of archaeological research (discussed below), but despite the recognised archaeological potential, no known archaeological sites have been recorded within the proposed development footprint. Based on the available archaeological information, the proposed activities are unlikely to result in significant impacts on archaeological heritage resources. The development is therefore considered acceptable from an archaeological perspective. The area is rated as 'General' Protection C (Field Rating IV C) and does not need to be mitigated (See Appendix B).

Although significant impacts are not anticipated, there remains the possibility that previously unrecorded archaeological material may be exposed during excavation and development activities. For this reason, the recommendations outlined in this report should be implemented during all ground-disturbing activities. Should archaeological material be encountered, work must cease in the immediate vicinity of the find, and the relevant heritage authority and a qualified archaeologist must be notified.

Subject to the implementation of the recommendations contained within this report, the proposed Abantu Environmental Services conference centre development may proceed from an archaeological heritage perspective.

HERITAGE LEGISLATIVE AND POLICY FRAMEWORK

NOTE: The phase 1 archaeological and cultural impact assessment was conducted as a requirement of the ECPHRA (Eastern Cape Provincial Heritage Authority) and National Heritage Resources Act 25 of 1999, Section 38 (1)(a), (b), (c)(i), (d):

(1) Subject to the provisions of subsections (7), (8) and (9), any person who intends to undertake a development categorized as –

- (a) the construction of a road, wall, power line, pipeline, canal or other similar form of linear development or barrier exceeding 300 m in length;
- (b) the construction of a bridge or similar structure exceeding 50 m in length;
- (c) any development or other activity which will change the character of the site – (i) exceeding 5 000 m² in extent

The extract from ECPHRA's comment on the proposed development dated 20 November 2023: ECPHRA (Eastern Cape Provincial Heritage Authority) COMMENTS in terms of Section 38(8) of the National Heritage Resources Act (25 of 1999). This matter was tabled at the Archaeology, Palaeontology and Meteorites (APM) Committee meeting held on 19 October 2023. ECPHRA requests a Heritage Impact Assessment which include a Phase 1 AIA (Archaeological Impact Assessment) and a PIA (Paleontological Impact Assessment) for the specific proposed development site. This report follows the minimum standard guidelines required by the South African Heritage Resources Agency (SAHRA) and the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) for compiling a full Phase 1 Archaeological Impact Assessment (AIA). The Eastern Cape Provincial Heritage Resources (ECPHRA) has been the competent authority in the Eastern Cape Province since 2012. All heritage reports must be submitted to the Eastern Cape Provincial Heritage Resources Authority (ECPHRA) for comment and uploaded to the South African Heritage Information System (SAHRIS).

PURPOSE OF STUDY

The purpose of the study was to conduct a phase 1 archaeological impact assessment for Abantu Environmental Services for the development of a conference centre within the Mbashe Local Municipality in the Eastern Cape Province. The desktop study was conducted to establish the range and importance of the exposed and in situ archaeological heritage material remains, sites and features; to establish the potential impact of the development; and to make recommendations to minimize possible damage to the archaeological heritage.

The study further aims to identify any potential impacts that the proposed activities may have on archaeological resources and to provide recommendations for the appropriate management, conservation, and mitigation of heritage where necessary.

The objectives of the assessment are to:

- determine the archaeological context of the proposed development area;

- evaluate the archaeological sensitivity and significance of the affected rock units;
- assess the potential impact of the proposed development on archaeological remains;
- provide recommendations to avoid, minimise, or mitigate any adverse impacts on archaeological heritage; and
- ensure compliance with the requirements of the National Heritage Resources Act (Act No. 25 of 1999), the National Environmental Management Act (Act No. 107 of 1998), and the heritage management policies of SAHRA and ECPHRA.

The assessment is based on a review of available geological maps, archaeological survey data, previous heritage assessments, published scientific literature, and other relevant sources of information pertaining to the archaeological heritage of the study area and surrounding region.

RECOMMENDATIONS

The area is considered to be of low archaeological and heritage significance. The development may proceed but the recommendations described below in the report should be considered. The area is rated as 'General' Protection C (Field Rating IV C) (See Appendix B).

DECLARATION OF INDEPENDENCE AND QUALIFICATIONS

This section confirms a declaration of independence that archaeological heritage specialist, Dr Rosa Moll, has no financial or any other personal interests in the project for Abantu Environmental Services. Dr Moll was appointed on a strictly professional basis to conduct a Desktop study Phase 1 Archaeological Impact Assessment in line with the South African national heritage legislation, the National Heritage Resources Act 25 of 1999 (NHRA 25 of 1999) and in response to the recommendations provided by the Department of Environmental Affairs and Tourism and according to the environmental impact assessment regulations. Dr Moll (PhD Archaeology) is an archaeologist working in Southern and Eastern Africa.

I hereby declare that the information presented in this report is, to the best of my knowledge, accurate and based on available scientific data and professional judgement. The findings, conclusions, and recommendations contained herein are independent and have not been influenced by the applicant, developer, or any other interested or affected party.

INTRODUCTION

The proposed development area is located in the Mbashe Local Municipality in the Eastern Cape covering a total area of 77198.68m². This area includes a conference centre that will be 61852.68m² in size, with a perimeter size of 1078.85m, and lies at median elevation of 846.23m (maximum elevation: 858.81m and minimum elevation: 831.8m), an access road covering 14520.09m², with a perimeter of 2963.42m, and a crossing structure over the access road of 825.91m² (Figures 1-3). Three pipes will also be built (water (963.67m long), sewer (973.5m long), and stormwater (1035.94m long) pipes) along the access road.

The development lies approximately 109km north-east from KuGompo City (previously called East London), 360km south-west from Durban in KwaZulu-Natal, 66km north of Kei Mouth, and 1.2km north from the centre of Dutywa town and the Idutywa War Memorial 1939 - 1945, War Memorial Library (Inventory Number: 3228AC70) and lies next to the N2 motorway.

The various proposed developments are all seen in the satellite images below (Figures 3-6). The conference centre is the rectangle highlighted in orange, the access road and the crossing structure are highlighted in red, the storm water pipe is highlighted in light blue, the water pipeline is highlighted in purple, and the sewer pipe is highlighted in orange.

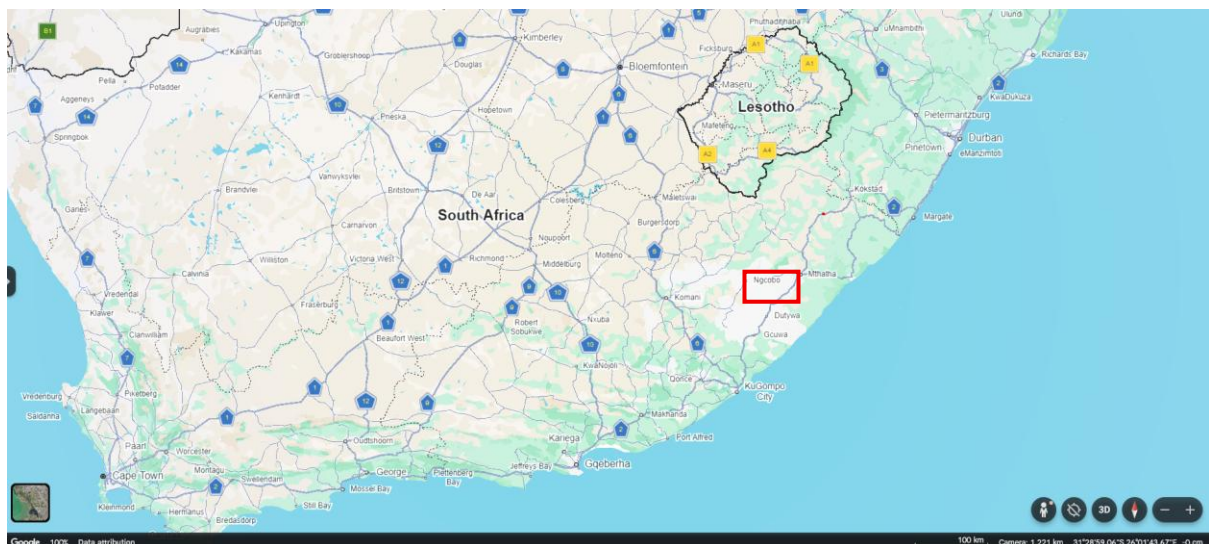


Figure 1: Map of South Africa with the general location of the property.

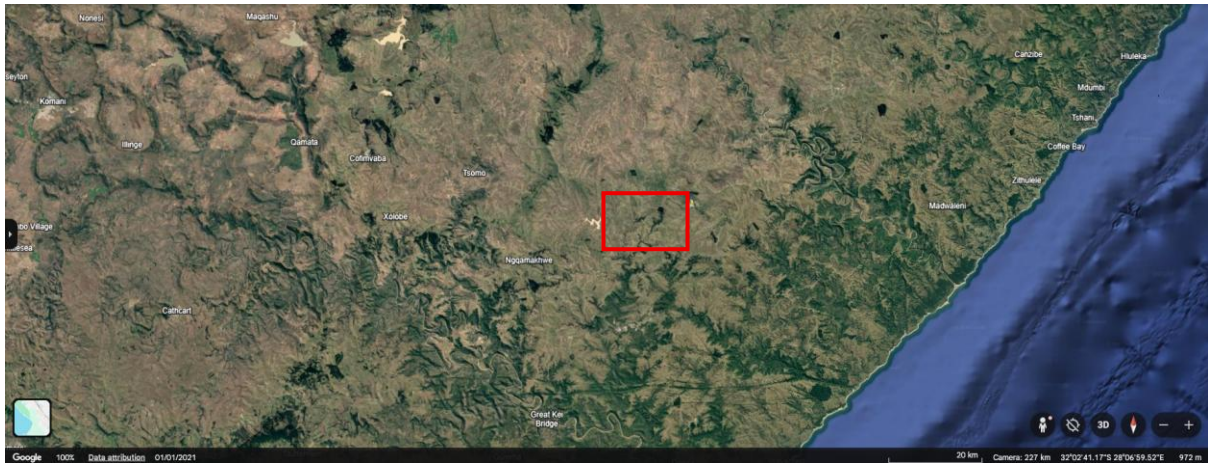


Figure 2: Satellite image of the general area in the Eastern Cape

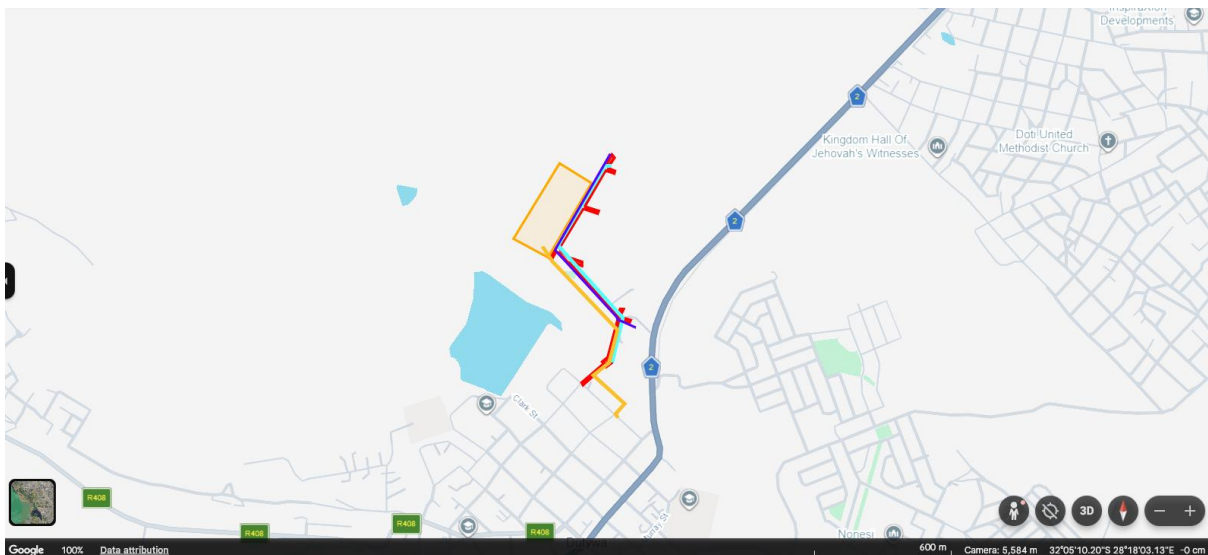


Figure 3: Map of the area with the development area highlighted in various colours.

ARCHAEOLOGICAL BACKGROUND

There is no archaeological record of surveys or excavations from the location proposed for development, based on the records from SAHRIS, and academic publications. However, there is a robust record of archaeological sites in the Eastern Cape in the Mbashe Local Municipality, in the Amathole District Municipality and therefore there could be sites or artefacts discovered during development. Potential archaeological remains could come from any of the periods described below and the developer should be aware of them. A brief overview of the archaeological record of the Eastern Cape will be given, with some reference images.

Historical satellite images of the development area (Figures 4-6) show the area and any potential changes over the last twenty-three years. The area appears to change seasonally,

with more vegetation apparent towards the end of the summer months (Figure 4). The image of the area during the winter months (Figure 5) does not show any extra features not visible in the denser vegetation. The most recent satellite image (Figure 6) shows the sparse topography of the area. The features surrounding the proposed development area have been significantly developed over the years, with the construction of a large residential complex west of Dutywa. No significant archaeological finds were noted from this construction.

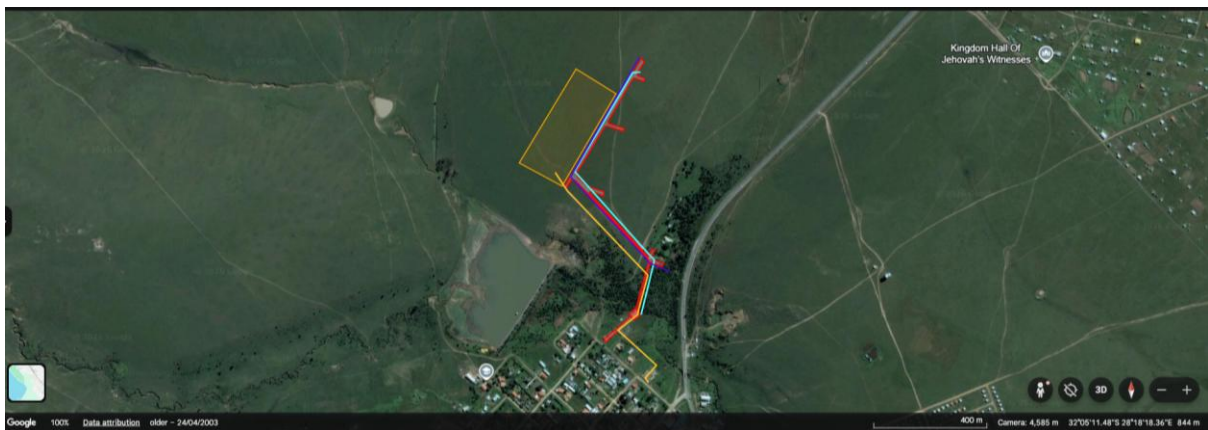


Figure 4: Historical satellite image of the area from 24/04/2003

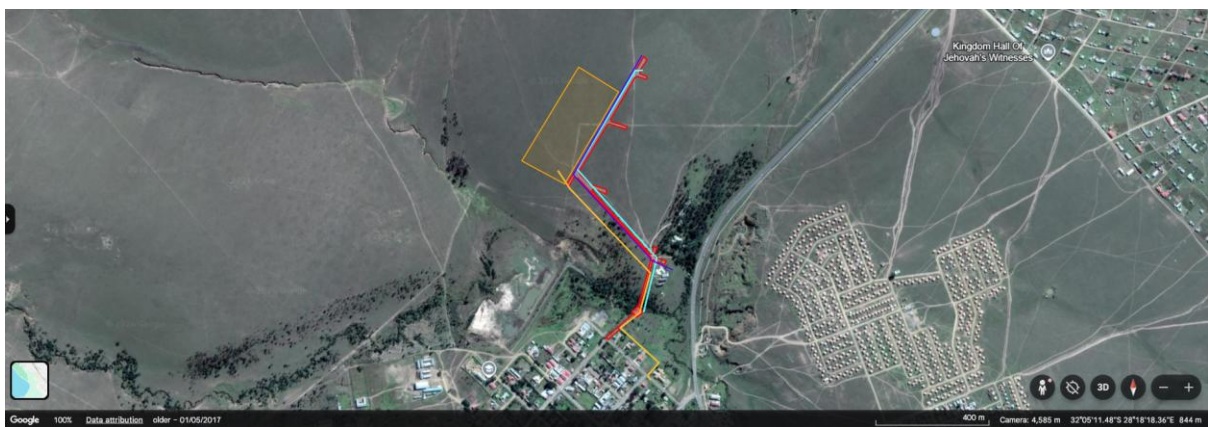


Figure 5: Historical satellite image of the area from 01/05/2017



Figure 6: Top: Most recent satellite image of the area from 14/01/2026. Bottom: a close-up satellite image of the proposed conference centre from the same date.

Earlier Stone Age (ESA) – in Southern Africa, the ESA dates between 2.2 million to roughly 300000 years ago and consists of two technological complexes: the Oldowan (roughly 2.2-1.6 million years ago), and the Acheulean (roughly 1.7-0.3 million years ago) (Granger et al. 2015; Kuman 2019a and b). These assemblages are mainly found inland around areas with modern day and ancient water sources but the preservation of these sites is usually heavily disturbed. The diagnostic stone artefacts of the Acheulean are large cutting tools (handaxes and cleavers) made on cobbles of large stone flakes >10cm. As the Acheulean technological industry progressed the pieces became more refined and had more evidence of shaping (Figure 7).

Acheulean sites and artefact scatters have been recorded in the Eastern Cape, including Amanzi Springs and Sundays River Valley. Amanzi Springs lies 10 km north-east of Uitenhage near the Coega River and is found among a series of thermal springs (Deacon 1970; Herries et al. 2023). Hilary Deacon led excavations at the site between 1964-1966 where multiple archaeological layers were discovered containing Acheulean artefacts. Recent excavations have discovered more Acheulean artefacts and some Middle Stone Age

artefacts, suggesting continuous and/or recurrent occupation of the springs throughout the Middle Pleistocene. It is uncommon to find organic material such as wood, and seeds in ESA deposits but there is evidence of some preserved in the spring deposits due to the acidic nature of the soil. Museum collections have ESA artefacts in their collections from across the Eastern Cape, such as from Amathole district (they can also be labelled as coming from the Ciskei and Transkei), and ESA material has been found in the Keiskamma River floodplain (Derricourt 1977). Booth (2019) is an AIA that further describes ESA sites and scatters in the province, and Smith (2010) recorded CRM of ESA artefacts near Elliot.

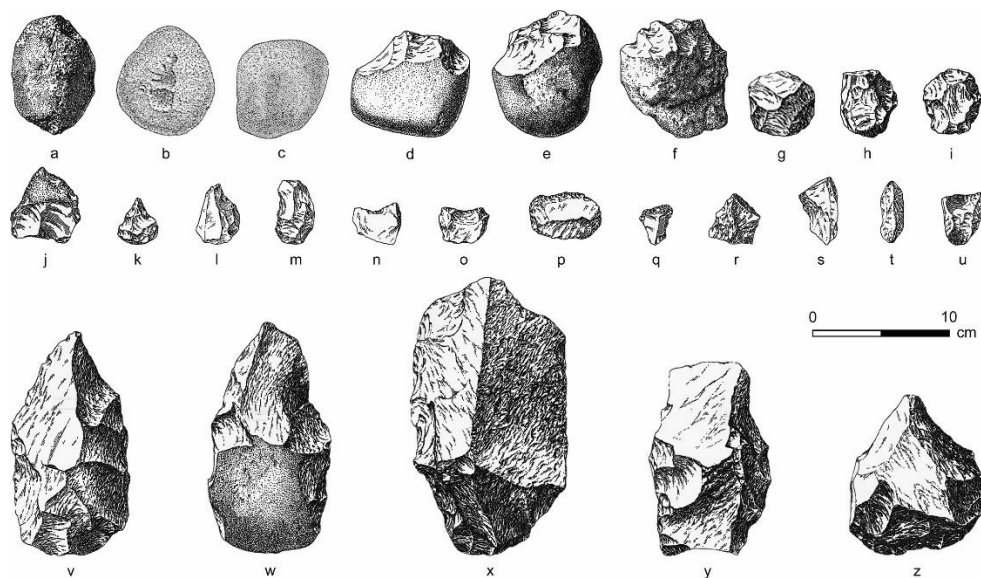


Figure 7: Examples of Earlier Stone Age stone tools. From Favreau (2003)

Middle Stone Age (MSA) - marks technological and behavioural changes associated with modern humans that roughly dates to between 300000-40000 years ago in Southern Africa and is found in both inland and coastal regions (Thompson and Marean 2008). The stone tool technological industries began to diversify, and smaller flake and blade industries replaced ESA diagnostic tools. The MSA is distinguished by prepared core technology, small formal tool production (such as blades and points), hafting of stone tools, and preserved evidence of symbolic behaviour. Much of what we know about the MSA comes from well preserved cave deposits found along the coastline of South Africa. Notable sites with MSA deposits in the Eastern Cape are Howieson's Poort rock shelter near Grahamstown, Klasies River Mouth Cave along the Tsitikamma coast, and Strathalan Cave near Maclear (Derricourt 1973; Booth 2019). There are also many previous and ongoing excavations across the province.

Special periods of innovation occurred throughout the MSA, such as the Still Bay and the Howieson's Poort. The Still Bay industry dates to between roughly 77000-60000 years ago

and is found in multiple coastal sites across South Africa. It is characterised by bifacial lanceolate points that would be hafted as spears (Wadley 2007; Soriano et al. 2015) (Figure 8). The Howieson's Poort Industry (80000–55000 years ago) is characterised by backed tools made for hafting alongside worked bone tools (Deacon and Deacon 1999). Symbolic artefacts include *Nassarius kraussianus* shell beads, ostrich eggshell (OES) fragments, and engraved ochre.



Figure 8: Examples of Middle Stone Age tools from South Africa. From Scerri et al. (2019: 3)

Later Stone Age (LSA) – the final phase of the Stone Age emerged at different times throughout the southern African regions, with some assemblages dating to 40000 years ago, but it is found throughout the region by 20000 years ago until roughly 2500 years ago (Deacon and Deacon 1999; Mitchell 2002) and is associated with *Homo sapiens* hunter-gatherer societies. There are multiple varied technological industries within the LSA, but the overall period is characterised by microlithic tools that could be hafted, bored and grooved stones, polished bone tools, and bows and arrows (Figure 9). Towards the end of the LSA (after 2000 years ago) pottery emerges, and when found with stone tools, clearly indicates a LSA association rather than MSA or ESA. All these examples of archaeological material continue into the last 2000 years (described below).

LSA sites are also varied, with sites being found in caves, rock shelters, and in open-area contexts. Some notable sites in the Eastern Cape are Wilton, Strathallan Cave, and Melkhoutboom. There are many areas with archaeological sites, such as the Dortrecht

region, Maclear region, and the Seacow River Valley. Industries are the Wilton, Robberg, and the Oakhurst. Alongside the stone tools there are multiple examples of symbolic material culture such as rock art, ostrich egg shell, and beads. In the Eastern Cape rock art sites can be found in all the mountainous areas, especially towards the southern Drakensberg (Derricourt 1977; Laue 2017).



Figure 9: Examples of Later Stone Age tools from South Africa. From Blessing et al. (2022: 155)

Last 2000 years – pastoralist communities moved into the Southern African region from around 2000 years leading to the interaction between these communities and the hunter-gather communities who had been in the region for thousands of years. This interaction between different groups of people led to the diversification of material culture and lifeways, and the introduction of new domesticated species like fat-tailed sheep, and thin walled pottery (Mitchell and Whitelaw 2005). These sites are usually in open-air contexts, often along or near water sources, and rare stone walling has been found. Overall, the open-air context of these sites makes them hard to locate. In the Eastern Cape notable sites from this period include Scott's Cave, Goedgeloof shell midden along the St. Francis coast, and Oakleigh rock shelter near Queenstown (Deacon 1977; Derricourt 1977; Binneman 2007).

Iron Age (IA) and Historical Period– the IA is well-documented and chronologically sequenced in southern Africa, with evidence found across the entire country in the last 2000 years. Ceramic traditions are used to differentiate the time periods within the IA but are overall different to the pastoralist pottery types. IA pottery is usually heavily decorated and have thick walls and was used in sedentary activities. Metal working was also introduced

with these communities and practices related to iron, copper, tin, and gold mining (Huffman 2004). Stone walling features also occur in this time period and would be found. The historical period refers to the arrival of European travellers and colonial powers until recently. The archaeological material from this period includes mission stations, buildings, battlegrounds, and colonial settlements.



Figure 10: Example of Iron Age stone walling. From Booth (2019: 49)



Figure 11: Examples of pottery sherds. From Fredriksen (2023: 19)

Rock Art – rock art refers to any paintings or engravings made on a rock surface. These practices are common from the LSA onwards and found throughout South Africa. Paintings are usually found in rock shelters and caves while rock engravings are usually found on boulders and rocks in open-air contexts. Other archaeological remains can often be found in conjunction with rock art. In the Eastern Cape there has been extensive research into rock art in the Maclear, Tsolo, Barkly East, Ugie, Dordrecht, and the Drakensberg range and Maluti Mountains (Laue 2017). The South African Rock Art Database (SARADA) established by the Rock Art Research Institute at the University of the Witwatersrand is a useful source for rock art site information across southern Africa.



Figure 12: Example of rock art paintings. From Laue (2017: 151)



Figure 13: Examples of rock engraving

Human remains – human remains are often marked by piled rocks and are sometimes found eroding out of the ground. If remains are discovered development needs to be ceased immediately. The Albany Museum Database has records of human remains found throughout the Eastern Cape in archaeological contexts.



Figure 14: Example of a potential informal grave. From Coetzee (2025: 34)

METHODOLOGY

The desktop study of the area was conducted by inspecting maps of the area and by consulting written sources including published articles and heritage and archaeological impacts assessments. AIA reports of surrounding areas were consulted and found on the SAHRIS portal and from Google Scholar. Journal articles about the archaeology of the area were found on Google Scholar. Google earth was used to inspect maps of the area and past satellite images.

ARCHAEOLOGICAL FINDINGS

There is no evidence of archaeological excavations, surveys, or mitigation from the development area. The area is rated as 'General' Protection C (Field Rating IV C) and does not need to be mitigated (See Appendix B). There is also no evident archaeological or heritage remains found in the development area based on the satellite images and maps. Historical satellite images have limitations in identifying archaeological and heritage resources as it might have a poor image resolution that renders potential heritage sites invisible and dense vegetation could be obscuring heritage sites. Due to the small size of some heritage sites, such as Stone Age sites, small Iron Age features, rock art sites and burials, such sites are rarely visible on aerial imagery and are generally only detected during pedestrian surveys.

ASSUMPTIONS AND UNCERTAINTIES

This assessment is based on available geological maps, published literature, archaeological records, satellite imagery, and SAHRIS data. Although the study area is mapped as having unknown archaeological remains, cultural material could be found during development.

The principal uncertainty relates to the possibility of buried archaeological horizons that may only be exposed during excavation. However, considering the limited exposure, small development footprint, local topography, and absence of known archaeological sites within the immediate area, the likelihood of encountering significant archaeological material is considered low. Any unexpected archaeological discoveries can be adequately managed following the recommendations outlined in this report.

RECOMMENDATIONS

The limits of a desktop study mean that identification of possible archaeological remains relies on the maps provided and literature review of the area and location. There are no clear signs of one or more archaeological sites in the proposed development area, but the construction company should keep an eye out for possible remains, especially to any circular stone structures, or in any rock shelters not evident in the maps. The area is rated as 'General' Protection C (Field Rating IV C) and does not need to be mitigated (See Appendix B).

The area is considered as having a low archaeological heritage significance. Development may proceed as planned; however, the following recommendations must be considered during the planning phase for proposed development:

1. If any archaeological material and/or human remains (including graves and burials) are uncovered during construction, all work must cease immediately. These finds must be reported to the Albany Museum (046 622 2312) and/or the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) (043 745 0888) so that systematic and professional investigation/excavation can be undertaken. Phase 2 mitigation in the form of test-pitting/sampling or systematic excavations and collections of the pre-colonial shell middens and associated artefacts will then be conducted to establish the contextual status of the sites and possibly remove the archaeological deposit before development activities continue.
2. Construction managers/foremen and/or the Environmental Control Officer (ECO) should be informed before construction starts on the possible types of heritage sites and cultural material they may encounter and the procedures to follow when they find sites.
3. A Palaeontological Impact Assessment (PIA) is being conducted alongside this AIA and any recommendations there also need to be considered and followed.

CONCLUSION

The proposed area for development is of low archaeological cultural significance based on the desktop study. Taking into consideration the recommendations, the development may

proceed as planned. If any archaeological or heritage material were to be discovered the recommendations mentioned above need to be followed. However, there is always a possibility that human remains, or other archaeological and historical material may be uncovered during the development. Such material must be reported to the Eastern Cape Provincial Heritage Resources Agency (ECPHRA) (043 745 0888) or the Albany Museum (046 622 2312) if exposed.

Subject to the implementation of these measures, the proposed development is considered acceptable from an archaeological heritage perspective.

While pre-excavation mitigation measures are not required, it is advisable to implement the following recommendations to ensure the discovery, preservation, and proper management of archaeological resources during the proposed excavation and construction activities:

- **ECO Awareness:** The Environmental Compliance Officer (ECO) responsible for overseeing the project should be well-informed about the potential presence of archaeological remains within the project area.
- **Construction Manager Awareness:** The construction managers and supervisory personnel involved in the project should also be made aware of the possibility of encountering significant archaeological remains on-site.
- **Exposure Inspection:** During excavation, it is crucial that any geological exposures encountered are thoroughly inspected for the presence of fossil remains, particularly fossils of high scientific value e.g. vertebrate teeth and bones. If any fossils of significance are discovered, the ECO should contact the appropriate authority to further investigate the area.
- **Qualified Palaeontologist Notification:** In the event of significant fossil discoveries, a qualified palaeontologist should be promptly notified. This palaeontologist should possess the expertise and qualifications necessary for accurately assessing and documenting the findings.
- **Recording and Sampling:** Any fossils of scientific value found within the excavation area should be regarded as of palaeontological interest. The palaeontologist should be responsible for recording and sampling these fossils. The costs associated with this activity should be borne by the developer as part of their responsibility for preserving and managing palaeontological resources.

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APPENDIX A: HERITAGE LEGISLATIVE REQUIREMENTS

Sections 3, 34, 35, 36, 38, 48, 49 and 51 of the National Heritage Resources Act 25 of 1999 apply:

S3. National estate

(1) For the purposes of this Act, those heritage resources of South Africa which are of cultural significance or other special value for the present community and for future generations must be considered part of the national estate and fall within the sphere of operations of heritage resources authorities.

(2) Without limiting the generality of subsection (1), the national estate may include –

- (a) places, buildings, structures and equipment of cultural significance;
- (b) places to which oral traditions are attached or which are associated with living heritage;
- (c) historical settlements and townscapes;
- (d) landscapes and natural features of cultural significance;
- (e) geological sites of scientific or cultural importance;
- (f) archaeological and palaeontological sites;
- (g) graves and burial grounds, including –
 - (i) ancestral graves;
 - (ii) royal graves and graves of traditional leaders;
 - (iii) graves and victims of conflict; (iv) graves of individuals designated by the Minister by notice in the Gazette;
 - (v) historical graves and cemeteries; and
 - (vi) other human remains which are not covered in terms of the Human Tissue Act, 1983 (Act No. 65 of 1983);

(h) sites of significance relating to the history of slavery in South Africa; (i) movable objects, including –

(i) objects recovered from the soil or waters of South Africa, including archaeological and palaeontological specimens;

(ii) objects to which oral traditions are attached or which are associated with living heritage;

(iii) ethnographic art and objects;

(iv) military objects; (v) objects of decorative or fine art;

(vi) objects of scientific or technological interest; and

(vii) books, records, documents, photographic positives and negatives, graphic, film or video material or sound recordings, excluding those that are public records as defined in section 1(xiv) of the National Archives of South Africa Act (Act No. 43 of 1996).

(3) Without limiting the generality of subsections (1) and (2), a place or object is to be considered part of the national estate if it has cultural significance or other special value because of –

(a) its importance in the community, or pattern of South Africa's history;

(b) its possession of uncommon, rare or endangered aspects of South Africa's natural or cultural heritage;

(c) its potential to yield information that will contribute to an understanding of South Africa's natural or cultural heritage;

(d) its importance in demonstrating the principal characteristics of a particular class of South Africa's natural or cultural places or objects;

(e) its importance in exhibiting particular aesthetic characteristics valued by a community or cultural group;

(f) its importance in demonstrating a high degree of creative or technical achievement at a particular period;

(g) its strong or special association with the life or work of a person, group or organisation of importance in the history of South Africa; and

(h) sites of significance relating to the history of slavery in South Africa.

S34. Structures

- (1) No person may alter or demolish any structure or part of a structure which is older than 60 years without a permit issued by the relevant provincial heritage resources authority.
- (2) Within three months of the refusal of the provincial heritage resources authority to issue a permit, consideration must be given to the protection of the place concerned in terms of one of the formal designations provided for in Part 1 of this Chapter.
- (3) The provincial heritage resources authority may at its discretion, by notice in the Provincial Gazette, make an exemption from the requirements of subsection (1) within a defined geographical area, provided that it is satisfied that heritage resources falling into the defined area or category have been identified and adequately provided for in terms of the provisions of Part 1 of this Chapter.
- (4) Should the provincial heritage resources authority believe it to be necessary if by, following a three-month notice period published in the Provincial Gazette, withdraw or amend a notice under subsection (3).

S35. Archaeology, palaeontology and meteorites

- (1) Subject to the provisions of section 8, the protection of archaeological and palaeontological sites and material and meteorites is the responsibility of a provincial heritage resources authority: Provided that the protection of any wreck in the territorial waters and maritime cultural zone shall be the responsibility of SAHRA.
- (2) Subject to the provisions of subsection (8)(a), all archaeological objects, palaeontological material and meteorites are the property of the State. The responsible heritage authority must, on behalf of the State, at its discretion ensure that such objects are lodged with a museum or other public institution that has a collation policy acceptable to the heritage resources authority and may in doing so establish such terms and conditions as it sees fit for the conservation of such objects.
- (3) Any person who discovers archaeological or palaeontological objects or material or a meteorite in the course of development or agricultural activity must immediately report the find to the responsible heritage resources authority, or to the nearest local authority or museum, which must immediately notify such heritage resources authority.
- (4) No person may, without a permit issued by the responsible heritage resources authority—

(a) destroy, damage, excavate, alter, deface or otherwise disturb any archaeological or palaeontological site or any meteorite;

(b) destroy, damage, excavate, remove from its original position, collect or own any archaeological or palaeontological material or object or any meteorite;

(c) trade in, sell for private gain, export or attempt to export from the Republic any category of archaeological or palaeontological material or object, or any meteorite; or

(d) bring onto or use at an archaeological or palaeontological site any excavation equipment or any equipment which assist in the detection or recovery of metals or archaeological and palaeontological material or objects, or use such equipment for the recovery of meteorites.

(5) When the responsible heritage resources authority has reasonable cause to believe that any activity or development which will destroy, damage or alter any archaeological or palaeontological site is under way, and where no application for a permit has been submitted and not heritage resources management procedure in terms of section 38 has been followed, it may –

(a) Serve on the owner or occupier of the site or on the person undertaking such development an order for the development to cease immediately for such period as is specified in the order;

(b) Carry out an investigation for the purpose of obtaining information on whether or not an archaeological or palaeontological site exists and whether mitigation is necessary;

(c) If mitigation is deemed by the heritage resources authority to be necessary, assist the person on whom the order has been served under paragraph (a) to apply for a permit as required in subsection (4); and

(d) Recover the costs of such investigation from the owner or occupier of the land on which it is believed an archaeological or palaeontological site is located or from the person proposing to undertake the development if no application for a permit is received within two weeks of the order being served.

(5) The responsible heritage resources authority may, after consultation with the owner of the land on which archaeological or palaeontological site or a meteorite is situated, serve a notice on the owner or any other controlling authority, to prevent activities within a specified distance from such site or meteorite.

(6) (a) Within a period of two years from the commencement of this Act, any person in possession of any archaeological or palaeontological material or object or any meteorite which was acquired other than in terms of a permit issued in terms of this Act, equivalent provincial legislation or the National Monuments Act, 1969 (Act No. 28 of 1969), must lodge with the responsible heritage resources authority lists of such objects and other information prescribed period shall be deemed to have been recovered after the date on which this Act came into effect.

(b) Paragraph (a) does not apply to any public museum or university.

(c) The responsible authority may at its discretion, by notice in the Gazette or the Provincial Gazette, as the case may be, exempt any institution from the requirements of paragraph (a) subject to such conditions as may be specified in the notice, and may by similar notice withdraw or amend such exemption.

(8) and object or collection listed under subsection (7) –

(a) remains in the ownership of the possessor for the duration of his or her lifetime, and SAHRA must be notified who the successor is; and

(9) must be regularly monitored in accordance with regulations by the responsible heritage authority.

S36. Burial grounds and graves

(1) Where it is not the responsibility of any other authority, SAHRA must conserve and generally care for burial grounds and graves protected in terms of this section, and it may make such arrangements for their conservation as it sees fit.

(2) SAHRA must identify and record the graves of victims of conflict and any other graves which it deems to be of cultural significance and may erect memorials associated with the grave referred to in subsection (1), and must maintain such memorials.

(3) (a) No person may, without a permit issued by SAHRA or a provincial heritage resources authority— (a) destroy, damage, alter, exhume or remove from its original position or otherwise disturb the grave of a victim of conflict, or any burial ground or part thereof which contains such graves; (b) destroy, damage, alter, exhume, remove from its original position or otherwise disturb any grave or burial ground older than 60 years which is situated outside a formal cemetery administered by a local authority; or (c) bring onto or use at a burial ground or grave referred to in paragraph (a) or (b) any excavation equipment, or any equipment which assists in the detection or recovery of metals.

(3) SAHRA or provincial heritage resources authority may not issue a permit for the destruction or damage of any burial ground or grave referred to in subsection (3)(a) unless it is satisfied that the applicant has made satisfactory arrangements for the exhumation and re-interment of the contents of such graves, at the cost of the applicant and in accordance with any regulations made by the responsible heritage resources authority.

(4) SAHRA or a provincial heritage resources authority may not issue a permit for any activity under subsection (3)(b) unless it is satisfied that the applicant has, in accordance with regulations made by the responsible heritage resources authority - (a) Made a concerted effort to contact and consult communities and individuals who by tradition have an interest in such grave or burial ground; and (b) Reached agreements with such communities and individuals regarding the future of such grave or burial ground.

(5) Subject to the provision of any other law, any person who in the course of development or any other activity discovers the location of a grave, the existence of which was previously unknown, must immediately cease such activity and report the discovery to the responsible heritage resources authority which must, in cooperation with the South African Police Service and in accordance with regulations of the responsible heritage resources authority –

(a) Carry out an investigation for the purpose of obtaining information on whether or not such grave is protected in terms of this Act or is of significance to any community; and

(b) If such grave is protected or is of significance, assist any person who or community which is the direct descendant to make arrangements for the exhumation and re-interment of the contents of such grave or, in the absence of such person or community, make any such arrangements as it deems fit.

(6) (a) SAHRA must, over a period of five years from the commencement of this Act, submit to Minister for his or her approval lists of graves and burial grounds of persons connected with the liberation struggle and who died in exile or as a result of the action of State security forces or agents provocateur and which, after a process of public consultation, it believes should be included among those protected under this section.

(c) The Minister must publish such lists as he or she approved in the Gazette.

(6) Subject to section 56(2), SAHRA has the power, with respect to the graves of victims of conflict outside the Republic, to perform any function of a provincial heritage resources authority in terms of this section.

(7) SAHRA must assist other State Departments in identifying graves in a foreign country of victims of conflict connected with the liberation struggle and, following negotiations with the next of kin, or relevant authorities, it may reinter the remains of that person in a prominent place in the capital of the Republic.

S.37 Public monuments and memorials

Public monuments and memorials must, without the need to publish a notice to this effect, be protected in the same manner as places which are entered in a heritage register referred to in section 30.

S38. Heritage resources management

(1) Subject to the provisions of subsections (7), (8) and (9), any person who intends to undertake a development categorized as –

- (a) the construction of a road, wall, power line, pipeline, canal or other similar form of linear development or barrier exceeding 300 m in length;
- (b) the construction of a bridge or similar structure exceeding 50 m in length;
- (c) any development or other activity which will change the character of the site –
 - (i) exceeding 5 000 m² in extent, or
 - (ii) involving three or more erven or subdivisions thereof; or
 - (iii) involving three or more erven or divisions thereof which have been consolidated within the past five years; or
 - (iv) the costs of which will exceed a sum set in terms of regulations by SAHRA, or a provincial resources authority;
- (d) the re-zoning of a site exceeding 10 000 m² in extent; or
- (e) any other category of development provided for in regulations by SAHRA or a provincial heritage resources authority, must as the very earliest stages of initiating such a development, notify the responsible heritage resources authority and furnish it with details regarding the location, nature and extent of the proposed development.

(2) The responsible heritage resources authority must, within 14 days of receipt of a notification in terms of subsection (1) –

- (a) if there is a reason to believe that heritage resources will be affected by such development, notify the person who intends to undertake the development to submit

an impact assessment report. Such report must be compiled at the cost of the person proposing the development, by a person or persons approved by the responsible heritage resources authority with relevant qualifications and experience and professional standing in heritage resources management; or

(b) notify the person concerned that this section does not apply.

(3) The responsible heritage resources authority must specify the information to be provided in a report required in terms of subsection (2)(a): Provided that the following must be included:

(a) The identification and mapping of all heritage resources in the area affected;

(b) An assessment of the significance of such resources in terms of the heritage assessment criteria set out in section 6(2) or prescribed under section 7;

(c) An assessment of the impact of development on such heritage resources;

(d) An evaluation of the impact of the development on heritage resources relative to the sustainable social and economic benefits to be derived from the development;

(e) The results of consultation with communities affected by the proposed development and other interested parties regarding the impact of the development on heritage resources;

(f) If heritage resources will be adversely affected by the proposed development, the consideration of alternative; and

(g) Plans for mitigation of any adverse effects during and after the completion of the proposed development.

(4) The report must be considered timeously by the responsible heritage resources authority which must, after consultation with the person proposing the development, decide –

(a) whether or not the development may proceed;

(b) any limitations or conditions to be applied to the development;

(c) what the general protections in terms of this Act apply, and what formal protections may be applied, to such heritage resources;

(d) whether compensatory action is required in respect of any heritage resources damaged or destroyed as a result of development; and

(e) whether the appointment of specialists is required as a condition of approval of the proposal.

(5) A provincial heritage resources authority may not make any decision under subsection (4) with respect to any development with impacts on a heritage resource protected at national level unless it has consulted SAHRA.

(6) The applicant may appeal against the decision of the provincial heritage resources authority to the MEC, who –

(a) must consider the views of both parties; and

(b) may at his or her discretion –

(i) appoint a committee to undertake an independent review of the impact assessment report and the decision of the responsible heritage resources authority;

And

(ii) consult SAHRA; and

(c) must uphold, amend or overturn such decision.

(7) The provisions of this section do not apply to a development described in subsection (1) affecting any heritage resource formally protected by SAHRA unless the authority concerned decides otherwise.

(8) The provisions of this section do not apply to a development as described in subsection (1) if an evaluation of the impact of such development on heritage resources is required in terms of the impact of such development of heritage resources is required in terms of the Environment Conservation Act, 1989 (Act No. 73 of 1989), or the integrated environmental management guidelines issued by the Department of Environmental Affairs and Tourism, or the Mineral Act, 1991 (Act No. 50 of 1991), or any other legislation: Provided that the consenting authority must ensure that the evaluation fulfils the requirements of the relevant heritage resources authority in terms of subsection (3), and any comments and recommendations of the relevant heritage resources authority with regards to such development have been taken into account prior to the granting of the consent.

(9) The provincial heritage resources authority, with the approval of the MEC, may, by the notice in the Provincial Gazette, exempt from the requirements of this section any place specified in the notice.

(10) Any person who has complied with the decision of a provincial heritage resources authority in subsection (4) or of the MEC in terms of subsection (6) or other requirements referred to in subsection (8), must be exempted from compliance with all other protections in terms of this part, but any existing heritage agreements made in terms of section 42 continue to apply.

S48. Permits

(1) A heritage resources authority may prescribe the manner in which an application is made to it for any permit in terms of this Act and other requirements for permit applications, including –

- (a) any particulars or information to be furnished in the application and any documents, drawings, plans, photographs and fees which should accompany the application;
- (b) minimum qualifications and standards of practice required of persons making application for a permit to perform specified actions in relation to particular categories of protected heritage resources;
- (c) standards and conditions for the excavation and curation of archaeological and palaeontological objects and material and meteorites recovered by authority of a permit;
- (d) the conditions under which, before a permit is issued, a financial deposit must be lodged and held in trust for the duration of the permit or such period as the heritage resources authority may specify, and conditions of forfeiture of such deposit;
- (e) conditions for the temporary export and return of objects under section 32 or section 35;
- (f) the submission of reports on work done under authority of a permit; and
- (g) the responsibilities of the heritage resources authority regarding monitoring of work done under authority of a permit.

(2) On application by any person in the manner prescribed under subsection (1), a heritage resources authority may in its discretion issue to such person a permit to perform such actions at such time and subject to such terms, conditions and restrictions or directions as may be specified in the permit, including a condition –

- (a) that the applicant give security in such form and such amount determined by the heritage resources authority concerned, having regard to the nature and extent of the

work referred to in the permit, to ensure the satisfactory completion of such work or the curation of objects and material recovered during the course of the work; or

(b) providing for the recycling or deposit in a materials bank of historical building materials; or

(c) stipulating that design proposals be revised; or

(d) regarding the qualifications and expertise required to perform that actions for which the permit is issued.

(3) A heritage resources authority may at its discretion, in respect of any heritage resource protected by it in terms of the provisions of Chapter II, by notice in the Gazette or the Provincial Gazette, as the case may be, grant an exemption from the requirement to obtain a permit from it for such activities or class of activities by such persons or class of persons in such circumstances as are specified in the notice.

S49. Appeals

(1) Regulations by the Minister and the MEC must provide for a system of appeal to the SAHRA Council for a provincial heritage resources council against a decision of a committee or other delegated representative of SAHRA or a provincial heritage resources body authority.

(2) Anybody wishing to appeal against a decision of the SAHRA Council or the council of a provincial heritage resources authority must notify the Minister or MEC in writing within 30 days. The Minister or MEC, must have due regards to –

(a) the cultural significance of the heritage resources in question;

(b) heritage conservation principles; and

(c) any other relevant factor which is brought to its attention by the appellant or the heritage resources authority.

S51. Offences and penalties

(1) Notwithstanding the provisions of any other law, any person who contravenes –

(a) sections 27(18), 29(10), 32(13) OR 32(19) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 1 of the Schedule;

(b) sections 33(2), 35(4) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 2 of the Schedule;

(c) sections 28(3) or 34(1) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 3 of the Schedule;

(d) sections 27(22), 32(15), 35(6), or 44(3) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 4 of the Schedule;

(e) sections 27(23)(b), 32(17), 35(3) or 51(8) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 5 of the Schedule;

(f) sections 32(13), 32(16), 32(20), 35(7)(a), 44(2), 50(5) or 50(12) is guilty of an offence and liable to a fine or imprisonment or both such fine and imprisonment as set out in item 6 of the Schedule.

(2) The Minister, with the concurrence of the relevant MEC, may prescribe a penalty of a fine or of imprisonment for a period not exceeding six months for any contravention or failure to comply with regulations by heritage resources authorities or by-laws by local authorities.

(3) The Minister or the MEC, as the case may be, may make regulations in terms of which the magistrate of the district concerned may –

(a) levy admission of guild fines up to a maximum amount of R10 000 for infringement of the terms of this Act for which such heritage resources authority is responsible; and

(b) serve a notice upon a person who is contravening a specified provision of this Act or has not complied with the terms of a permit issued by such authority, imposing a daily fine of R50 for the duration of the contravention, subject to a maximum period of 365 days.

(4) The Minister may from time to time by regulation adjust the amounts referred to in subsection (3) in order to account for the effect of inflation.

(5) Any person who-

(a) fails to provide any information that is required to be given, whether or not on the request of a heritage resources authority, in terms of this Act;

(b) for the purpose of obtaining, whether for himself or herself or for any other person, any permit, consent or authority in terms of this Act, makes any statement or representation knowing it to be false or not knowing or believing it to be true;

(c) fails to comply with or perform any act contrary to the terms, conditions, restrictions or directions subject to which any permit, consent or authority has been issued to him or her in terms of this Act;

(d) obstructs the holder of a permit in terms of this Act in exercising a right granted to him or her by means of such a permit;

(e) damages, takes, or removes, or causes to be damaged, taken or removed from a place protected in terms of this Act any badge or sign erected by a heritage authority or a local authority under section 25(2)(j) or section 27(17), any interpretive display or any other property or thing.

(f) receives any badge, emblem or any other property or thing unlawfully taken or removed from a place protected in terms of this Act; and

(g) within the terms of this Act, commits or attempts to commit any other unlawful act, violates any prohibition or fails to perform any obligation imposed upon him or by its terms, or who counsels, procures, solicits or employs any other person to do so.

shall be guilty of an offence and upon conviction shall be liable to such maximum penalties, in the form of a fine or imprisonment or both such fine and such imprisonment, as shall be specified in the regulations under subsection (3).

(6) Any person who believes that there has been an infringement of any provision of this Act, may lay a charge with the South African Police Service or notify a heritage resources authority.

(7) A magistrate's court shall, notwithstanding the provisions of any other law, be competent to impose any penalty under this Act.

(8) When any person has been convicted of any contravention of this Act which has resulted in damage or to alteration of a protected heritage resource the court may –

(a) order such person to put right the result of the act of which he or she was guilty, in the manner so specified and within such period as may be so specified, and upon failure of such person to comply with the terms of such order, order such person to pay to the heritage resources authority responsible for the protection of such resource a sum equivalent to the cost of making good; or

(b) when it is of the opinion that such a person is not in a position to make good damage done to a heritage resources by virtue of the offender not being the owner or occupier of a heritage resources or for any other reason, or when it is advised by the

heritage resources authority responsible for the protection of such resource that it is unrealistic or undesirable to require that the results of the act be made good, order such person to pay the heritage resources authority a sum equivalent to the cost of making good.

(9) In addition to other penalties, if the owner of a place has been convicted of an offence in terms of this Act involving the destruction of, or damage to, the place, the Minister on the advice of SAHRA or the MEC on the advice of a provincial heritage resources authority, may serve on the owner an order that no development of such place may be undertaken, except when making good the damage and maintaining the cultural value of the place, or for a period not exceeding 10 years specified in the order.

(10) Before making the order, the local authority and any person with a registered interest in the land must be given a reasonable period to make submissions on whether the order should be made and for how long.

(11) An order of no development under subsection (9) attaches to the land and is binding not only on the owner as at the date of the order, but also on any person who becomes an owner of the place while the order remains in force.

(12) The Minister on the advice of SAHRA, may reconsider an order of no development and may in writing amend or repeal such order.

(13) In any case involving vandalism, and whenever else a court deems it appropriate, community service involving conservation of heritage resources may be substituted for, or instituted in addition to, a fine or imprisonment.

(14) Where a court convicts a person of an offence in terms of this Act, it may order for forfeiture to SAHRA or the provincial heritage resources authority concerned, as the case may be, of a vehicle, craft, equipment or any other thing used or otherwise involved in the committing of the offence.

(15) A vehicle, craft, equipment or other thing forfeited under subsection (14) may be sold or otherwise disposed of as the heritage resources authority concerned deems fit.

APPENDIX B: GRADING SYSTEM

The National Heritage Resources Act 25 of 1999 stipulates the assessment criteria and grading of archaeological sites. The following categories are distinguished in Section 7 of the Act and the South African Heritage Resources Agency: □

- National: This site is suggested to be considered of Grade 1 significance and should be nominated as such. Heritage resources with qualities so exceptional that they are of special national significance.
- Provincial: This site is suggested to be considered of Grade II significance and should be nominated as such. Heritage resources which, although forming part of the national estate, can be considered to have special qualities which make them significant within the context of a province or a region
- Local: This site is suggested to be Grade IIIA significance. This site should be retained as a heritage register site (High significance) and so mitigation as part of the development process is not advised.
- Local: This site is suggested to be Grade IIIB significance. It could be mitigated and (part) retained as a heritage register site (High significance).
- 'General' Protection A (Field Rating IV A): This site should be mitigated before destruction (usually High/Medium significance).
- 'General' Protection B (Field Rating IV B): This site should be recorded before destruction (usually Medium significance).
- 'General' Protection C (Field Rating IV C): This site has been sufficiently recorded (in the Phase 1). It requires no further recording before destruction (usually of low significance).